



CHAPTER v.

An Act to confer further powers upon the Brentford A.D. 1919.
Gas Company and for other purposes.

[16th April 1919.]

WHEREAS the Brentford Gas Company (in this Act referred to as "the Company") were originally incorporated under the Act 1 & 2 Geo. IV. cap. lxxix (local) and further powers were conferred on the Company by subsequent Acts:

And whereas by the Brentford Gas Act 1858 all the prior Acts of the Company were repealed and the Company were continued and the provisions of the prior Acts were consolidated:

And whereas by the Brentford Gas Act 1914 the Company were authorised amongst other things to consolidate and convert the existing consolidated stock and the existing and unissued new stock 1881 into A Consolidated Stock and B Consolidated Stock respectively:

And whereas the issued capital of the Company now consists of the following:—

	£	s.	d.
A Consolidated Stock - - - -	992,045	0	0
B Consolidated Stock - - - -	734,920	0	0
Five per centum Preference Stock -	55,000	0	0
Premium capital not entitled to dividend - - - - -	209,791	0	0

and the Company are empowered to raise a further sum of three hundred and thirty-five thousand nine hundred and seventy-four pounds and sixpence by the creation and issue of further amounts of B Consolidated Stock or of Preference Stock:

And whereas the A Consolidated Stock and B Consolidated Stock are respectively entitled to standard dividends of four per centum and three and a-half per centum per annum subject to

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And whereas the Company have created and issued four per centum Debenture Stock to the nominal amount of two hundred and twenty-one thousand and four hundred pounds and have raised by borrowing on mortgage of their undertaking by the creation and issue of five and six per centum mortgages sums amounting in the aggregate to two hundred and fifty-six thousand eight hundred and fifty pounds and the Company are empowered to raise a further sum of two hundred and three thousand four hundred and sixty-six pounds by borrowing on mortgage or by the creation and issue of debenture stock:

And whereas the Company are subject to the Acts and Orders set out in the First Schedule to this Act (in this Act referred to as "the recited Acts") so far as those Acts and Orders are not repealed or amended:

And whereas by virtue of the recited Acts the Company are empowered to manufacture and supply gas within an area comprising parts of the counties of London Middlesex Surrey and Berks:

And whereas the demand for gas within the Company's limits of supply is rapidly increasing and it is expedient that the Company in order to meet such increased demand should be authorised to erect and maintain on certain lands belonging to the Company described in the Second Schedule to this Act additional works and to raise additional capital:

And whereas it is expedient to make provision for relieving the Company in certain events from the obligation to supply gas and to enable the Board of Trade to make orders in that behalf as hereinafter provided:

And whereas it is expedient that such further provisions should be made with respect to the Company and their undertaking as are in this Act contained:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and

Temporal and Commons in this present Parliament assembled A.D. 1919.
and by the authority of the same as follows:—

1. This Act may be cited as the Brentford Gas Act 1919 and the recited Acts and this Act may be cited together as the Brentford Gas Acts and Orders 1858 to 1919. Short and collective titles.

2. The following Acts and parts of Acts are (subject to the provisions of, and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):— Incorporation of general Acts.

The Gasworks Clauses Acts 1847 and 1871;

The Companies Clauses Consolidation Act 1845 except the provisions thereof with respect to the conversion of borrowed money into capital and the said provisions shall so far as the same are respectively applicable apply to any ordinary stock preference stock or debenture stock of the Company to be issued or created under the powers of this Act; and

Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act— Interpretation.

“The Company” means the Brentford Gas Company;

“The limits of supply” means the area within which the Company are for the time being authorised to supply gas;

“The Act of 1868” means the Brentford Gas Act 1868;

“The Order of 1881” means the Brentford Gas Order 1881 scheduled to and confirmed by the Gas Orders Confirmation Act 1881;

“The Act of 1914” means the Brentford Gas Act 1914;

“The recited Acts” means the several Acts and Orders set out in the First Schedule to this Act;

“The undertaking” means the undertaking of the Company as authorised by the recited Acts and this Act.

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LANDS.

Power to
purchase
additional
lands.

4. The Company may for the purposes of the undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands which the Company are authorised to purchase take and hold under the recited Acts any lands and hereditaments not exceeding in the whole twenty acres which the Company may from time to time require for the purposes of their works and the undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands which the Company are expressly authorised to use for such purposes by the said Acts and this Act.

Power to
sell and lease
lands.

5. Subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands (so far as such provisions are applicable) the Company may sell or let on lease for such periods as they think fit or otherwise dispose of any lands or property for the time being belonging to them acquired under the powers of this Act and which may not at the time be required for the purposes of the undertaking or any easements or rights in or under any lands for the time being belonging to them and may retain and hold or sell and dispose of any interest in or reversion to any lands or property so let and any such sale disposal or lease may be for such consideration and subject to such reservations restrictions and provisions and generally upon such terms and conditions as the Company think fit.

Persons
under dis-
ability may
grant ease-
ments &c.

6. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

GASWORKS.

Powers as to
construction

7. The provisions of and the powers conferred upon the Company by section 31 (Undertakers may construct and main-

tain gasworks on lands described in schedule and may make and sell gas &c.) of the Order of 1881 shall extend and apply to and may be exercised by the Company in respect of the lands described in the Second Schedule to this Act as if such lands had been described in the schedule to the Order of 1881 and the "limits of supply" in that section mentioned were the limits of supply defined by this Act.

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and mainten-
ance of gas-
works &c.

The said lands are coloured pink upon the maps dated the twenty-sixth day of March one thousand nine hundred and nineteen signed in triplicate by the Most Honourable Thomas Henry Thynne Marquess of Bath K.G. the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred and the said maps respectively shall within one month after the passing of this Act be deposited in the Office of the Clerk of the Parliaments House of Lords in the Private Bill Office of the House of Commons and in the principal office of the Company. If there be any discrepancy between the description of the said lands contained in the Second Schedule to this Act and the maps signed as aforesaid the latter shall prevail.

AS TO SUPPLY.

8. And whereas by the recited Acts and the Acts incorporated therewith the Company are under obligation upon being required so to do by the owner or occupier of any premises situate within a specified distance from any main of the Company to give and continue to give a supply of gas for such premises and to furnish and lay any pipe that may be necessary for such purpose and it is expedient having regard to the abnormal conditions brought about by or originating in consequence of the present war that provision be made for temporarily relieving the Company from such obligation to the extent set forth in this section Therefore the following provisions shall have effect:—

Board of
Trade may
temporarily
relieve Com-
pany from
obligation to
extend sup-
ply of gas.

- (1) The Board of Trade (hereinafter in this section called "the Board") may notwithstanding anything contained in the said Acts or this Act on the application of the Company at any time and from time to time by order relieve the Company during the continuance of the present war and a period of twelve months from the date of the termination thereof from—

(a) any obligation to give an increased supply of gas to the owner or occupier of any premises

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supplied by the Company with gas at or before the date of the passing of this Act or to give a supply of gas to any premises not previously at the said date supplied by the Company with gas or to give a supply of gas for any new or additional plant or apparatus consuming gas installed after the said date; and

(b) all claims for damage arising from and all penalties attached to the non-fulfilment of or non-compliance with any such obligation;

and during the continuance of any such order the Company shall be so relieved accordingly;

- (2) Not less than two weeks before the Company make an application to the Board under this section the Company shall give notice in writing of their intention to do so to every local authority of a district to or in which such application may relate or have effect and before dealing with any such application the Board may require the Company to publish any further notices which the Board direct them to publish and (in any case where it appears to the Board necessary) to give notice to such persons as the Board direct and shall give any local authority or person appearing to the Board to be interested in the application an opportunity of representing their or his views to the Board in such manner as the Board think fit.

CAPITAL AND BORROWING POWERS.

Power to
Company to
raise addi-
tional
capital.

9. The Company may from time to time raise additional capital to such amount as shall be sufficient to produce together with the sum of three hundred and thirty-five thousand nine hundred and seventy-four pounds and sixpence which the Company are by the Act of 1914 empowered to raise by the creation of further amounts of B Consolidated Stock or of preference stock and after taking into account the premiums or discounts (if any) which may be obtained or allowed respectively on the issue thereof the sum of eight hundred thousand pounds by the creation and issue of further amounts of B Consolidated Stock or of preference stock or wholly or partly by one or more of those modes respectively.

10.—(1) The additional capital created by the Company under this Act shall be part of the capital of the Company and any B Consolidated Stock forming part of such additional capital shall rank *pari passu* with the B Consolidated Stock authorised by the Act of 1914. The B Consolidated Stock so authorised and all B Consolidated Stock forming part of the additional capital shall in all respects and for all purposes be deemed to form part of one and the same stock.

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Privileges
&c. of
holders of
additional
capital.

(2) The holders of B Consolidated Stock in the additional capital shall in proportion to the amount of their stock be entitled to the like rights of voting and other rights qualifications and privileges and be subject to the like provisions and liabilities as the holders of the B Consolidated Stock authorised by the Act of 1914.

11. The provisions of section 23 (Profits of Company limited) of the Act of 1914 in so far as they limit the rate of dividend on the preference stock of the Company are hereby repealed and any preference stock which may be hereafter created under the powers of the recited Acts or which may be created under the powers of this Act may be stock with a dividend at such rate as the directors of the Company may determine at the time or times of the creation thereof.

Removal of
limit on
dividend on
preference
stock.

12. The directors of the Company may without any further or other authority than is given by this section and at such times in such manner and on such terms and conditions as they may think fit raise for the purposes of this Act and for the general purposes of the undertaking either at their option by borrowing on mortgage of the undertaking or by the creation and issue of debenture stock or partly by either of such means any sum or sums of money not exceeding in the whole four hundred thousand pounds and the powers to borrow conferred by this section shall be substituted for the powers to borrow conferred by the recited Acts in so far as they remain unexercised.

Power to
raise money
on mortgage
or by debenture stock.

13. Section 16 (Limit of interest on borrowed money) of the Order of 1881 is hereby repealed.

Repeal of
section 16 of
Order of 1881.

14. Section 18 (Arrears may be enforced by appointment of a receiver) of the Act of 1868 and section 21 of the Order of 1881 (Appointment of receiver) are hereby repealed but without

Appoint-
ment of
receiver.

A.D. 1919. prejudice to any appointment heretofore made or to any proceedings pending at the passing of this Act The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver And in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Application
of certain
sections of
Act of 1914.

15. Subject to the provisions of this Act the following sections of the Act of 1914 (that is to say):—

Section 12 (Unissued stock to be sold by auction or tender);

Section 15 (Priority of mortgages and debenture stock over other debts);

Section 16 (Priority of principal moneys secured by existing mortgages); and

Section 20 (Application of section 9 of Act of 1868);

shall extend and apply mutatis mutandis so far as applicable respectively to and in relation to the additional capital and moneys by this Act authorised to be raised and borrowed.

Issue of
preference
capital and
debenture
stock.

16.—(1) If the Company desire to raise by the issue of preference stock any capital which they are by the Act of 1914 or this Act authorised to raise or to issue any debenture stock under the powers of the Act of 1914 or this Act they may create and issue such preference stock or debenture stock so as to be redeemable on such terms and conditions as may be specified in a resolution of the Company passed by a special meeting convened for the purpose.

(2) If it is so provided in the resolution the Company may—

(A) Call in and pay off the stock or any part thereof at any time before the fixed date of redemption; and

(B) Redeem the stock or any part thereof either by paying off the stock or by issuing to any stockholder subject to his consent other stock in substitution therefor and may for the purpose of providing money for paying off the stock or of providing substituted stock create and issue new stock (either redeemable

or irredeemable) or reissue stock originally created and issued under this section. Provided that the creation and issue of any preference capital under this section does not make the total nominal amount of preference and ordinary capital issued under this Act exceed the amount of such capital which the Company are by this Act authorised to issue, and provided also that the creation and issue of debenture stock under this section is not in excess of the amount of debenture stock which the Company are for the time being authorised to create and issue under the powers of this Act.

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17. If any money is payable to a stockholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Receipt in cases of persons not sui juris.

18. All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

Application of money.

19. The Company shall not under the powers of this Act raise or borrow any money (except for the payment of the costs charges and expenses referred to in the section of this Act whereof the marginal note is "Costs of Act") during the continuance of the present war and within twelve months thereafter unless the consent of the Treasury has been previously obtained.

Consent of Treasury to raising of money.

20. Nothing in this Act shall exempt the Company or the undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Saving as to general Acts.

21. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

Costs of Act.

A.D. 1919. The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

RECITED ACTS.

The Brentford Gas Act 1858.

The Brentford Gas Act 1868.

The Brentford Gas Order 1876.

The Brentford Gas Order 1881.

The Brentford Gas Act 1914.

The Staines and Egham Gas Order 1871.

The Staines and Egham Gas Order 1881.

The Staines and Egham Gas Order 1891.

The Staines and Egham Gas Order 1902.

The Sunbury Gas Order 1887.

} So far as not repealed
by the Brentford Gas
Act 1914 or any
previous Act.

SECOND SCHEDULE.

LANDS ON WHICH THE COMPANY MAY ERECT AND MAINTAIN A.D. 1919.
ADDITIONAL GASWORKS AND MANUFACTURE GAS AND
RESIDUAL PRODUCTS AND STORE GAS.

(i) A piece of land situate in the parish of Norwood in the urban district of Southall-Norwood in the county of Middlesex belonging or reputed to belong to the Company containing 14·75 acres or thereabouts and bounded on the north and east by the existing gasworks of the Company at Southall on the south by the Great Western Railway and on the west and north-west partly by the towing path of the Grand Junction Canal Company and partly by the enclosure numbered 13 on the 1-2500 Ordnance Map (Edition of 1914) Middlesex Sheet XV. 14.

° (ii) A piece of land situate in the parish of Norwood in the urban district of Southall-Norwood in the county of Middlesex belonging or reputed to belong to the Company containing 6·5 acres or thereabouts and being portions of the enclosures numbered 113 and 147 on the 1-2500 Ordnance Map (Edition of 1914) Middlesex Sheet XV. 14.

Printed by EYRE and SPOTTISWOODE, LTD.,

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